



OFFICE OF THE POLICE COMMISSIONER
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January 24, 2019

Memorandum for: Deputy Commissioner, Trials

Re: **Lieutenant Kurt Lewis**
Tax Registry No. 927080
Detective Borough Bronx
Disciplinary Case No. 2018-18619

The above named member of the service appeared before Assistant Deputy Commissioner Paul M. Gamble on July 30, September 18 and 19, 2018, and was charged with the following:

DISCIPLINARY CASE NO. 2018-18619

1. Said Lieutenant Kurt Lewis, while assigned to the 47th Precinct's Detective Squad, on or about and between October 25, 2017 and January 25, 2018, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that Lieutenant Lewis wrongfully ingested and/or injected anabolic agents, anabolic steroids, and/or precursors to such anabolic agents and/or anabolic steroids, without police or medical necessity, to wit; 1-Testosterone. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5

2011 Personnel Bureau Memo No. 44

**PUBLIC CONTACT –
PROHIBITED CONDUCT
ANABOLIC STEROIDS AND
HUMAN GROWTH HORMONE**

2. Said Lieutenant Kurt Lewis, while assigned to the 47th Precinct's Detective Squad, on or about and between October 25, 2017 and January 25, 2018, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that Lieutenant Lewis wrongfully possessed anabolic agents, anabolic steroids, and/or precursors to such anabolic agents and/or anabolic steroids, without police or medical necessity, to wit; 1-Testosterone. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5

2011 Personnel Bureau Memo No. 44

**PUBLIC CONTACT –
PROHIBITED CONDUCT
ANABOLIC STEROIDS AND
HUMAN GROWTH HORMONE**

LIEUTENANT KURT LEWIS

DISCIPLINARY CASE NO. 2018-18619

In a Memorandum dated November 23, 2018, Assistant Deputy Commissioner Paul M. Gamble found Lieutenant Lewis Guilty of both Specifications in Disciplinary Case No. 2018-18619. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

I have considered the totality of the issues and circumstances in this matter and therefore direct that Lieutenant Lewis be offered a post-trial negotiated agreement in which he shall forfeit thirty-three (33) suspension days previously served and twenty-seven (27) suspension days to be served, be placed on one (1) year dismissal probation, and be subjected to two (2) random drug screening tests, including but not limited to testing for anabolic steroids during said dismissal probation. If Lieutenant Lewis does not agree to the terms of this post-trial negotiated agreement, as noted, this Office is to be notified without delay.


James P. O'Neill
Police Commissioner



POLICE DEPARTMENT

November 23, 2018

-----X
In the Matter of the Charges and Specifications :

- against - :

Lieutenant Kurt Lewis :

Tax Registry No. 927080 :

Detective Borough Bronx :

Case No.

2018-18619

-----X
At:

Police Headquarters
One Police Plaza
New York, New York 10038

Before:

Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

Penny Bluford-Garrett, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

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To:

HONORABLE JAMES P. O'NEILL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

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CHARGES AND SPECIFICATIONS

1. Said Lieutenant Kurt Lewis, while assigned to the 47th Precinct's Detective Squad, on or about and between October 25, 2017 and January 25, 2018, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that Lieutenant Lewis wrongfully ingested and/or injected anabolic agents, anabolic steroids, and/or precursors to such anabolic agents and/or anabolic steroids, without police or medical necessity, to wit: 1-Testosterone. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5

General Regulations

2011 Personnel Bureau Memo No. 44

Anabolic Steroids and Human
Growth Hormone

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P.G. 203-10, Page 1, Paragraph 5

General Regulations

2011 Personnel Bureau Memo No. 44

Anabolic Steroids and Human
Growth Hormone

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on July 30, September 18 and 19, 2018. Respondent, through his counsel, entered a plea of Not Guilty to the subject Charges. The Department called Doctors Gary Green, Joseph Ciuffo, and Barry Sample as witnesses, as well as Police Officer Edmund Morrissey. Respondent called Captains Dennis O'Brien and Andrew Natiw and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. After considering the evidence, I find Respondent Guilty of Specifications 1 and 2. I recommend that he forfeit the thirty-three (33) days, previously served on pre-trial suspension; that he forfeit thirty (30) vacation days; and that he be placed on a one-year period of dismissal probation.

SUMMARY OF EVIDENCE

It is not in dispute in this case that on January 25, 2018, Respondent was directed to report to the Medical Division to participate in a mandatory drug screening. He complied with the order, reporting to Lefrak City at approximately 1630 hours. Respondent completed a Drug Screening Questionnaire, then provided a urine sample in accordance with Department collection procedures. The sample was packaged and mailed to Quest Diagnostics, which conducted a chemical analysis of his urine, then set forth the results in a laboratory report. The chemical analysis, utilizing gas chromatography/mass spectrometry and conducted according to industry standards, detected the presence of 1-Testosterone and/or its metabolites. Quest Diagnostics then reported the results of the chemical analysis to the Medical Division.

After receiving the report of the positive drug screening, a review of the laboratory result was conducted by Doctor Joseph Ciuffo, the Department Medical Review Officer. As part of his analysis, Dr. Ciuffo interviewed Respondent on February 20, 2018. During the interview, Respondent provided certain nutritional substances which he asserted that he had consumed. Respondent was interviewed by the Internal Affairs Bureau the same day. He was suspended on February 20, 2018, then assigned to modified duty on March 25, 2018.

At issue in this case is whether Respondent wrongfully ingested and/or injected anabolic agents, anabolic steroids, and/or precursors to such anabolic agents or anabolic steroids, specifically, 1-Testosterone. Also at issue is whether Respondent wrongfully possessed anabolic agents, anabolic steroids, and/or precursors to such anabolic agents or anabolic steroids, specifically, 1-Testosterone. The following is a summary of the disputed evidence.

Doctor R.H. Barry Sample testified for the Department as an expert in the field of forensic toxicology. Dr. Sample is the senior director of science and technology for the Employer Solutions business at Quest Diagnostics. He is also a laboratory director for some of

Quest Diagnostics' laboratories, including the Lenexa, Kansas laboratory, for which he holds a New York State Department of Health license as a laboratory director. Dr. Sample is also a laboratory director for Quest's Brazilian laboratory under the auspices of the College of American Pathologists Forensic Drug Testing Accreditation Program. He is certified by the American Board of Forensic Toxicology. Dr. Sample received his Ph.D. in pharmacology from Indiana University in 1985 (T. 158-165).

Dr. Sample testified that anabolic steroids are substances which promote muscle growth in the body; they are also chemically, structurally, and pharmacologically related to Testosterone. The most common routes for introducing anabolic steroids into the body are oral ingestion and injection. Anabolic steroids are detected in urine through the use of gas chromatography/mass spectrometry ("GC/MS"). 1-Testosterone is an anabolic steroid and cannot be legally marketed in the United States, as it is regulated by the Drug Enforcement Administration and is a Schedule III controlled substance (T. 169-171). Dr. Sample has supervised the analysis of over 100,000 urine samples for the presence of anabolic steroids during his 27 years with Quest Diagnostics (T. 166-169).

Quest Diagnostics tests for the presence of 1-Testosterone by taking one sample from a testing subject, known as the "A" sample, logging it into their computer system, pouring a portion of its contents into a tube, then labeling the tube with a unique laboratory accession number. All of the other samples in the batch are handled in the same manner, each being assigned their own laboratory accession numbers. The labeled tubes are then subjected to GC/MS screening to determine which samples, if any, contain the steroids being tested for. In the event one or more of the samples yields a positive result, those samples are subjected to a second round of GC/MS testing, which is referred to as confirmatory testing. A sample is reported as positive for the presence of a steroid only if the initial test and the confirmatory test

are positive. Under the Department protocol, if both tests are positive for the presence of a steroid, the screening commences on a second sample from the testing subject, known as the "B" sample. The "B" sample is tested in the same manner as the "A" sample. Thus, a positive result is reported back to the Department only if both the "A" and "B" samples tested positive in the initial screening test and the confirmatory test (T. 171-178).

Dr. Sample reviewed the laboratory packages relating to the analyses Quest Diagnostics conducted on Respondent's "A" and "B" urine samples¹ (T. 179-184). He testified that the results of the analyses were that both samples tested positive for the presence of 1-Testosterone and/or its metabolites² (T. 184-185).

On cross-examination, Dr. Sample conceded that he had never reviewed Personnel Bureau Memorandum 44 (T. 186). Dr. Sample further testified that while Quest Diagnostics did not test for any of the precursors which could eventually produce 1-Testosterone in the body, the ingestion of either 1-Androstenediol or 1-Androstenedione could result in a positive test for the presence of 1-Testosterone (T. 190-192). According to Dr. Sample, the drug testing regimen used in this case is incapable of revealing whether Respondent used 1-Testosterone directly, or ingested a Testosterone precursor which metabolized into 1-Testosterone (T. 194-195). Based upon his in-court review of the admissions contained in Respondent's Medical Division interview, and a copy of a photograph of the STEEL 1-ANDRO supplement, Dr. Sample opined that Respondent's test results were consistent with his ingestion of that supplement³ (T. 196-197). Dr. Sample hypothesized that if Respondent ingested one of the 1-ANDRO pills, the

¹ Police Officer Edmund Morrissey testified to the procedures employed on January 25, 2018, during the collection of Respondent's urine samples. The chain of custody of those samples, as well as their authenticity, is undisputed.

² The metabolite of 1-Testosterone is known as "1-Testosterone metabolite."

³ Dr. Sample also pointed out that the label for STEEL 1-ANDRO bore the words "1-testosterone precursor."

Testosterone precursor contained in the supplement would metabolize into 1-Testosterone within approximately seven days (T. 198-200).

Dr. Sample testified that while precursors are widely marketed for sale in the United States, such marketing is contrary to Federal regulations, since 1-Androstenediol and 1-Androstendione are Schedule III controlled substances. According to Dr. Sample, many supplements which are advertised as containing "Testosterone boosters," which purportedly trigger the body's own production of Testosterone, make such claim without scientific evidence to support it (T. 200-202).

Doctor Joseph Ciuffo testified that he is employed by the Department as a Medical Review Officer. He is also an assistant clinical professor at SUNY Downstate and is board-certified in family practice (T. 102). Dr. Ciuffo was permitted to testify as an expert in the field of general medicine⁴ (T. 106).

Dr. Ciuffo prepared a report, admitted into evidence as Department Exhibit 5, which included the Drug Screening Unit documentation, a pre-screening questionnaire completed by Respondent, contemporaneous notes he made as he interviewed Respondent and a transcript of the interview notes (T. 107-108). The report also contained photographs of supplements Respondent provided for Dr. Ciuffo's inspection at the time of the interview (T. 108).

Dr. Ciuffo testified that he was notified of Respondent's positive test result by his clinic Sergeant, who then scheduled an interview with Respondent (T. 109-110). During his interview, Respondent told Dr. Ciuffo that he took two supplements, STEEL PUMPED-AF and Nitraflex, before his workouts and STEEL RESTED-AF as a recovery supplement before bedtime. Respondent also admitted to taking STEEL ALPHA-AF, STEEL 1-ANDRO, and STEEL 4-

⁴ While Dr. Ciuffo was permitted to testify as an expert witness, he was also a fact witness.

ANDRO. Respondent also took LivaTone Plus for his liver and a protein supplement, STEEL BCAA (T. 112). Respondent claimed that he worked out three times per week and took supplements in order to be healthy and work out better (*Id.*).

During his interview with Dr. Ciuffo, Respondent acknowledged being aware of the Memo, even bringing a copy of it to the interview, but claimed it was obscure. While Respondent acknowledged that the supplements he took were Testosterone precursors, he claimed they were not prohibited under the Memo (T. 113, 129-130). Finally, Respondent provided Dr. Ciuffo the supplements he was taking (T. 108, 122). Dr. Ciuffo conceded on cross-examination that the supplements Respondent provided were not subjected to laboratory analysis (T. 124). Based upon the responses provided by Respondent, Dr. Ciuffo opined that there was no alternative medical explanation for his positive test result (T. 111).

Doctor Gary Green testified for the Department as an expert in the field of forensic toxicology. He is a partner in the Pacific Palisades Medical Group in Pacific Palisades, California, as well as a clinical professor at the UCLA School of Medicine. Dr. Green is employed as the medical director, and the research director, of Major League Baseball ("MLB"), as well as their consultant on anabolic steroids and performance-enhancing drugs. He is also the head team physician at Pepperdine University. Dr. Green is a review officer for the United States Anti-Doping Agency and an adviser to the United States Soccer Federation. He received his medical degree from Hahnemann University in 1983. Dr. Green is board certified in internal medicine and sports medicine (T. 16-17, 22; Department Exhibit 1).

Dr. Green testified that anabolic steroids are either Testosterone or synthetic Testosterone-type substances that have effects on the androgen receptors (T. 24). These substances attach themselves to the androgen receptors, which are located throughout the body, with the typical effects of promoting secondary sexual characteristics, such as deepening of the

voice, increased muscle mass, and male pattern hair growth (T. 24). The typical means of testing for the use of anabolic steroids is chemical analysis of a person's urine, using gas chromatography/mass spectrometry (T. 25).

Dr. Green defined precursors, also called prohormones, as substances which are anabolic steroids and which metabolize into the parent drug once introduced into the body, whether by ingestion or injection (T. 60).

Dr. Green reviewed the Quest Diagnostics laboratory package, as well as the Medical Review Officer's package, pertaining to Respondent's urine sample (T. 26-29, Department Exhibits 2, 3). Dr. Green explained that Department Exhibit 3, the laboratory report, listed ten different drugs of abuse, with a cutoff level and confirmation level for each; the sample tested negative for these drugs. The report also listed approximately 30 anabolic steroids for which the sample was tested, with a positive result for 1-Testosterone and/or its metabolites (T. 34-35, 82-83).

Dr. Green opined that it would be difficult to state with certainty how long a person who tested positive for 1-Testosterone as a result of using dietary supplements would continue to do so, but the range of probable detection would be approximately nine to ten days (T. 36). Factors which could affect the duration of detection would be the dosage taken, the frequency of use, the route of administration and the subject's own metabolism (T. 36-37).

Dr. Green testified that his review of Department Exhibit 4, the Medical Division Drug Screening Questionnaire for Urine, revealed no alternate explanation for the positive test result (T. 38). His review of the Medical Review Officer's report in Department Exhibit 5 revealed that of the eight supplements which Respondent admitted to using in his interview, two of them, STEEL 1-ANDRO and 4-ANDRO, were likely to contain 1-Androstenedione and 4-

Androstenedione, respectively, both of which metabolize in the human body into 1-Testosterone (T. 41-42, 48-49; Department Exhibit 5).

Dr. Green testified that in his medical practice, he would never prescribe the two aforementioned supplements, or any other Testosterone-like precursor, based upon their illegality, as well as the risk of damage to the liver and the brain. These substances reduce HDL, the "good" cholesterol, and raise LDL, the "bad" cholesterol. They also cause fluid retention, leading to high blood pressure and increase the risk of cardiovascular disease (T. 44). Dr. Green also testified that the lists of ingredients on the supplement packages can be misleading, although the warning labels for the STEEL 1 and ANDRO STEEL 4 did advise that the products were not for women or children and that a health care professional should be consulted if there were any questions about a potential user's health (T. 49-50). A specific example of the misleading nature of the labeling is the representation on the STEEL website of DHEA, dehydroepiandrosterone, as a natural ingredient; in fact, it is another Testosterone precursor (T. 81). Finally, in Dr. Green's expert opinion, assuming that the ingredients listed on the labels for the aforementioned products were accurate, the use of such products would be consistent with a positive result for the presence of 1-Testosterone and its metabolites (T. 50, 64).

Dr. Green testified that he was a consultant to this Department on Personnel Bureau Memo 44 ("the Memo") (*Id.*, Department Exhibit 7). In his view, bullet points 11 through 16 in the Memo caution MOS to avoid "bodybuilding products that are represented as steroids or steroid-like substances marketed as alternatives to anabolic steroids for increasing muscle mass and strength" (T. 52-53). Dr. Green further testified that he had reviewed Respondent's interview and highlighted Respondent's statements that "1-ANDRO is a Testosterone precursor" and "It promotes the production of free Testosterone in the body" (T. 53-54, Department Exhibit

6). Dr. Green asserted that Respondent's admissions to the use of Testosterone precursors were consistent with the test results in this case (T. 59).

On cross-examination, Dr. Green conceded that the terms "anaboli," "tren," and "blocks estrogen," which are set forth in paragraph 11 of the Memo, did not appear on the packaging for the supplements Respondent admitted to using; they did, however, appear on the website for the manufacturer of the supplements, a website Respondent admitted to viewing (T. 69, Department Exhibit 5; Department Ex. 6, p. 9, 15-16, 18, 23, 25).

Respondent testified at trial that in January 2018, he was taking supplements, including a protein shake which he described as a pre-workout Testosterone booster (T. 284, 285). He characterized the supplements he purchased as common and available for purchase at GNC, Rite Aid and supermarkets, in addition to online (T. 290). Because they were so "extremely common," he claimed he had no reason to consider the supplements he purchased online as any different from the ones available over the counter (*Id.*). He asserted that he was unaware of the Department policy regarding the use of "anabolic agents" prior to testing positive on his screening test (T. 291). Since that time, he has become familiar with the term "anabolic agent." Respondent stated that had he seen the word "steroid" on the supplement packaging, he would have associated it with a controlled substance which is illegal to possess (*Id.*). He denied knowingly taking steroids, understanding that in order to do so, one would either take them pursuant to a prescription or would have to commit an illegal act to obtain them; in contrast, the supplements he used "were perfectly legal to obtain" (*Id.*). Respondent specifically denied believing that he was violating Department policy by taking the STEEL 1-ANDRO or 4-ANDRO supplements (T. 293, 296-297).

On cross-examination, Respondent conceded that he conducted no research into the STEEL company beyond reading the testimonials they had on their website (T. 304, 305). He

admitted that 1-ANDRO was marketed as a Testosterone booster, and that he took it [REDACTED]

[REDACTED] (T. 308, 315). He explained:

"So a testosterone booster, as Dr. Sample explained yesterday, there's a multitude of products that are marketed as testosterone boosters. They're extremely common. You can find it in my grocery store where I live. It's as common as aspirin, it's as common as a multi-vitamin. So my thinking when taking it was not that this was something specific that I needed a consultation with a doctor to take. There isn't anything else that I'm aware of, that you would need a consultation with a doctor to take that you can buy on the shelves in your grocery store, so I didn't think of it that way. It never occurred to me that this might be something that could cause some kind of positive - a result in a urine test, something that I could buy at a grocery store."

(T. 309-310).

In response to questions posed by the Tribunal, Respondent asserted that he did not take issue with the expert testimony offered by any of the expert witnesses concerning the nature of the supplements he took or the properties of androgenic substances (T. 321). He further conceded that he had no specialized knowledge in biochemistry or endocrinology (T. 322). Respondent was unsure of whether he was aware that the supplements he purchased were not regulated by the Food and Drug Administration at the time he purchased them (T. 323).

Captain Dennis O'Brien testified that he is a 34-year Member of Service and is the Commanding Officer of Detective Zone 20 in the Bronx. He supervises Detective Bureau operations conducted in the 47th, 48th and 49th Precincts and supervised Respondent for approximately two years when Respondent was the commander of the 47th Precinct Detective Squad. While in his supervisory role, Captain O'Brien formed an opinion of Respondent's performance of duty. He testified that he considered Respondent a "highly effective precinct detective squad commander" with "a great deal of potential for advancement within the Bureau" (T. 231-234). Captain O'Brien based his opinion on "measurable improvements to the operation of the precinct detective squad," as well as personal observation of Respondent in the performance of his duties. He testified that during several major crimes he supervised in which

Respondent was the on-scene lieutenant commander, he and the other executives present expressed confidence in Respondent's ability to commence and conduct the investigation in a manner which would involve the exhaustion of every investigative lead (T. 234- 237).

Captain O'Brien explained that the designation "Lieutenant Commander of Detectives" is a discretionary promotion within the Detective Bureau. In order to be eligible for that promotion, one must hold the civil service title of Lieutenant and be in an investigative unit. Respondent's promotion to that status was made based, in part, upon Captain O'Brien's recommendation, as well as that of Deputy Inspector Jeffrey Hart. According to Captain O'Brien, the designation is awarded based upon a record of demonstrated competence in investigations, in particular, major investigations (T. 237-238).

Captain O'Brien also related an anecdote from June 2016 where former Chief of Detectives Robert Boyce praised Respondent's CompStat presentation by saying, "Kurt, you've got that squad firing on all cylinders" (T. 238-239). He also testified that based upon his personal observation, Respondent enjoyed a positive professional reputation within his detective squad, describing them as "the most cohesive unit that I've seen in my military and police career, which is to say that the members of the 47th Precinct Detective Squad have confidence in and trust in each other, their superior officers, and the superior officers have confidence in and trust in each other and in their subordinates. And that doesn't happen by accident. That is a factor of leadership" (T. 249-250).

Captain Andrew Natiw testified that he is a 22-year Member of Service and is the Executive Officer of Bronx Narcotics. He has directly supervised Respondent since February 2018. Prior to supervising Respondent, Captain Natiw became familiar with Respondent's performance of duty as the 47th Precinct Detective Squad commander in his role as the Zone Captain for Zone 9. In that capacity, Captain Natiw supervised Detective Bureau operations

conducted in the 46th, 47th, 50th and 52nd Precinct detective squads (T. 254-255). While the Zone Captain, he did not directly supervise Respondent but he became familiar with Respondent's performance of duty. Captain Natiw testified that Respondent enjoyed a positive professional reputation among the executives in the Bronx (T. 256-258).

Respondent was re-assigned to Bronx Narcotics as Captain Natiw's special assistant after being placed on modified duty. It is Captain Natiw's belief that in that role, Respondent has applied the investigative experience he obtained in the Detective Bureau to the Narcotics Bureau with positive results. Respondent performs "quality control" reviews of the investigative files of narcotics investigators and either identifies additional investigative steps or suggests redirecting the trajectory of the investigation (T. 258-261). While Captain Natiw testified that due to the nature of his assignment, Respondent does not have significant interaction with his subordinates at Bronx Narcotics, he does still enjoy a positive reputation with members of his former detective squad, as evidenced by their presence during this hearing. In the event of a judgment in this matter which does not result in termination from the Department, Captain Natiw expressed a willingness to have Respondent continue in his present role (T. 267-270).

I credit the respective testimonies of Doctors Green and Sample as forthright, disinterested and credible. Both witnesses testified as experts in the field of forensic toxicology, a designation which was amply supported by their vast experience and specialized knowledge. Their expert opinions, while not binding upon this Tribunal, were nevertheless informative and helpful in developing an understanding of the technical nature of the evidence.

I further credit the testimony of the Members of Service who testified before the Tribunal, whether called by the Department or Respondent. Police Officer Morrissey and Dr. Ciuffo were disinterested witnesses who testified regarding their respective roles in the collection of Respondent's urine sample and the post-testing interviews which they performed as part of

their regular duties. Captains O'Brien and Natiw testified as character witnesses relating to Respondent's performance of duty in the past and the prospect of continued service with this Department as both issues relate to a possible penalty. I found them to be candid, yet judicious, in their assessments.

I credit Respondent's testimony as generally forthright and responsive but self-serving with respect to his analysis of the information he possessed concerning the properties of the supplements he knowingly ingested.

Specification 1: Ingestion of a Precursor

I find that the Department has proven by a preponderance of the relevant, credible evidence that Respondent wrongfully ingested a Testosterone precursor.

In his official Department interview, Respondent admitted, "1-ANDRO is a Testosterone precursor . . . [i]t promotes the production of free Testosterone in the body." Respondent further admitted that he believed the product had properties which would increase the amount of Testosterone in his body. While Respondent testified that he was well aware that steroids are controlled substances and illegal to possess or distribute, he had no training in pharmacology, toxicology or endocrinology. It is notable that the label on the 1-ANDRO container contains the term "1-Testosterone precursor," a red flag for a forensic chemist but apparently of no moment to Respondent. Based upon the foregoing, I find that any assertions Respondent made regarding the nature of the substances he ingested or their properties was parroted from marketing materials and not the result of any independent knowledge.

The question before the Tribunal is then whether Respondent wrongfully ingested the supplements he admitted to taking. I find that it was unreasonable for a person of Respondent's particular circumstances (*i.e.*, a sworn police officer subject to mandatory Departmental drug screening) to rely upon the obviously self-serving assertions made by the distributor of the

STEEL products as to their ingredients, rather than heed the admonitions contained in Personnel Memorandum 44. I further find that Respondent ignored the evidence suggesting that the supplements were of a questionable character and chose to rely upon testimonials on the distributor's website which any reasonable person would have recognized as designed to persuade a potential buyer to purchase their products.

While Respondent elicited testimony from several witnesses which suggested that Personnel Memo 44 was both insufficiently notorious and lacked specificity, the Memo and its contents are binding upon Respondent and every other Member of Service. Ignorance of the Memo and its contents is not a defense to the charges in this matter.

That Respondent can assert that one of the substances he ingested was a Testosterone precursor means that he was on sufficient notice that the product might impact the results of the Department's urinalysis screening. Neither Respondent nor any other MOS need possess a doctorate to be placed on notice that the ingestion of any substance, not prescribed by a physician, which purports to artificially affect the production of hormones within their bodies is likely to impact drug tests.

In his testimony before the tribunal, Respondent referenced the testimony of Dr. Sample who did, in fact, assert that supplements were widely available in the United States. Dr. Sample also testified that sometimes the supplements were sold in violation of Federal regulations because they contained 1-Androstenedione and 1-Androstenediol, both of which are Schedule III controlled substances. In addition, Dr. Green opined that the STEEL 1-ANDRO supplement Respondent admitted to taking likely contained 1-Androstenedione, which metabolizes into 1-Testosterone. Thus, Respondent's recitation of Dr. Sample's correct assertion that supplements are widely available does not support an inference that Respondent had no reason to investigate

further to determine whether ingestion of the products could present a problem as a member of this Department subject to mandatory drug testing.

In choosing to ingest products which purported to produce the very results which are associated with the use of illegal steroids, and while refusing to conduct a diligent investigation of the true nature of the supplements, Respondent acted unreasonably and with negligent indifference to the foreseeable consequences of their use while a member of this Department.

Accordingly, I find Respondent Guilty of Specification 1.

Specification 2: Possession of an Anabolic Steroid

I find that the Department has proven by a preponderance of the relevant, credible evidence that Respondent wrongfully possessed 1-Testosterone.

There is no dispute that the urine samples obtained from Respondent on January 25, 2018, were analyzed accurately and reported on the laboratory report admitted into evidence as Department Exhibit 3. Doctors Sample and Green testified persuasively that the result of the chemical analysis of Respondent's urine samples was positive for the presence of 1-Testosterone, which is an anabolic steroid. Because the 1-Testosterone was found in Respondent's urine, he may be said to have possessed it.

Both witnesses testified further that the test result was consistent with ingestion of a Testosterone precursor, such as 1-Androstenediol or 1-Androstenedione, which would metabolize, once ingested, into 1-Testosterone. Respondent admitted during his in-court testimony that he knowingly ingested supplements which he believed would increase the Testosterone in his body, which he identified as "Testosterone precursors."

Finally, Respondent's possession of 1-Testosterone was wrongful because he had no legitimate medical purpose for the use of Testosterone or Testosterone-like substances. After Doctor Ciuffo interviewed Respondent and learned that he had ingested nutritional supplements

for the purpose of enhancing his workouts, he certified the positive test result in the absence of a legitimate alternative medical explanation. While his judgment is not dispositive as to the element of wrongfulness, it is persuasive evidence.

Accordingly, I find Respondent Guilty of Specification 2.

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on September 29, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Department has requested that Respondent be terminated. While the wrongful use of controlled substances by any Member of Service is inconsistent with good order, discipline and efficiency in this Department, I find the circumstances of this case warrant a serious penalty, to be followed by a period of monitoring, rather than outright termination. I find the facts of this case distinguishable from the two cases cited by the Department Advocate in support of the recommended penalty.

In *Disciplinary Case* [REDACTED] a thirteen-year officer with no prior disciplinary record agreed to file for vested-interest retirement, forfeit 30 suspension days without pay already served, forfeit an additional 30 suspension days without pay to be served, waive all time and leave balances, waive all suspension days and was placed on one-year dismissal probation after pleading guilty at a mitigation hearing to the ingestion and possession of four anabolic agents and/or steroids. While the respondent in that case admitted to using nutritional substances which specifically warned that the products could cause a positive test

result for "sports enhancement drugs," he also made a dubious statement, asserting that he had been duped by a physician into taking steroid injections.

In *Disciplinary Case* [REDACTED] (December 7, 2017), an eleven-year officer with no prior disciplinary record agreed to file for vested-interest retirement after being found guilty of ingesting and possessing four anabolic steroids. Respondent in that case claimed that he had a valid prescription for two of the anabolic steroids and asserted that he tested positive for the other two steroids as a result of his innocent ingestion of nutritional supplements without providing credible evidence to support either claim. In a post-trial settlement, Respondent agreed to file immediately for vested-interest retirement, forfeit 30 suspension days without pay already served, forfeit an additional 30 suspension days without pay to be served, waive all time and leave balances, waive all suspension days and was placed on one-year dismissal probation.

This case is more analogous to *Disciplinary Case No.* [REDACTED] (December 11, 2017), where a 17-year police officer forfeited 30 suspension days, in addition to 30 suspension days previously served, and was placed on one-year dismissal probation after being found guilty of ingestion and possession of anabolic steroids. In that case, Respondent claimed that he had innocently ingested nutritional supplements without being aware that they contained substances which were prohibited by the Personnel Memo or that could cause a positive urinalysis for anabolic steroids. While the evidence supported a finding that Respondent should have known that he was ingesting substances that were banned by the Personnel Memo, the record also supported a finding that his positive laboratory results were consistent with the precursors contained in the nutritional substances he admitted to using. In a post-trial settlement, Respondent agreed to be subject to two drug screenings during the one-year period of monitoring.

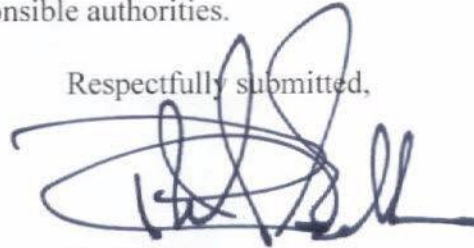
In this case, Respondent has consistently accepted responsibility for his decision to purchase and ingest nutritional supplements for the purposes of enhancing his workout regimen. He did so in his statements to Dr. Ciuffo, to Internal Affairs investigators and to this Tribunal. His in-court admission to being aware that the products contained Testosterone precursors, combined with the expert testimony of Doctors Green and Sample, form a sufficient basis for findings of Guilty of both specifications. Having had the opportunity to observe Respondent's demeanor while testifying, I am convinced that his testimony was candid, for the most part, and consistent with the inculpatory evidence presented by the Department Advocate. The record does not reveal any attempt by Respondent to shift blame for his situation, in contrast with the respondents in *Disciplinary Case Nos.* [REDACTED] and [REDACTED]. In addition, I note that Respondent testified under oath in the presence of several MOS from his former Detective Squad. I find that his testimony to unflattering facts under these circumstances reflected a degree of forthrightness which inures to his credit.

I further find that Respondent enjoyed a sterling reputation as an effective Detective Squad Commander prior to his positive urinalysis, as evidenced by Captain O'Brien's compelling testimony. I take special note that during the 10 months after his drug test, Respondent has continued to provide valuable police services to this Department as Captain Natiw's special assistant, even in a modified duty status. I find that the exemplary quality of his previous service is a mitigating factor in assessing a penalty in this case.

Based upon the foregoing, it is my recommendation that Respondent be DISMISSED from the New York City Police Department but that his dismissal be held in abeyance for a period of one year pursuant to Section 14-115(d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. In addition, I recommend that Respondent forfeit the thirty-

three (33) days, previously served on pre-trial suspension; finally, I recommend that Respondent forfeit thirty (30) vacation days. While it is beyond the authority of this Tribunal to direct mandatory drug testing during the one-year period of monitoring, it is strongly recommended that such additional measures be considered by responsible authorities.

Respectfully submitted,



Paul M. Gamble
Assistant Deputy Commissioner Trials





POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
LIEUTENANT KURT LEWIS
TAX REGISTRY NO. 927080
DISCIPLINARY CASE NO. 2018-18619

Respondent was appointed to the Department on September 29, 2000. On his last three annual performance evaluations, Respondent received an overall rating of 4.5 "Extremely Competent/Highly Competent." He has been awarded two medals for Excellent Police Duty and one medal for Meritorious Police Duty. [REDACTED]

Respondent has a prior disciplinary record. In 2004, he forfeited 31 suspension days after pleading guilty to damaging property in a Department facility. Additionally, Respondent has been on Level 2 Disciplinary Monitoring since April 13, 2018, in connection with the current disciplinary case.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials